

**MINUTES OF THE CITY OF HOLLADAY
PLANNING COMMISSION MEETING**

Tuesday, June 16, 2020

6:30 p.m.

Meeting Conducted via Electronic Means

ATTENDANCE:

Planning Commission Members:

Ann Mackin, Vice Chair
Jan Bradshaw
Jim Carter
Troy Holbrook
Chris Layton
Alyssa Lloyd

City Staff:

Jonathan Teerlink, City Planner
Stephanie Carlson, City Recorder

CONVENE ELECTRONIC MEETING – Public Welcome and Chair Opening Statement.

In the absence of Chair Marianne Ricks, Vice Chair Ann Mackin assumed the Chair and called the meeting to order and read the Commission statement.

PUBLIC HEARINGS

1. Ordinance Amendment – Building Corridor; Calculation Clarification (13.14.071).

City Planner, Jonathan Teerlink presented the staff report and stated that a public hearing was held a few years prior on the above-proposed ordinance amendment. It did not move forward due to issues with the Cottonwood Mall, which took priority. A fresh recommendation was needed from the Planning Commission as part of the overview and review of the current Code. He noted that other text amendments would be proposed over the next few meetings. The proposed text amendment was described as a housekeeping item. Originally, it was a calculation of the building corridor for the allowable depth at which a property can be built. The language originally used two homes on either side of the subject property. That specific verbiage was somehow omitted in the 2015 rewrite. There have been issues with staff having to interpret the ordinance by using the two abutting homes whereas applicants, developers, designers, and architects have been interpreting it as any home on the block, which is not a correct interpretation. The amendment rectifies that situation.

Mr. Teerlink clarified that the amendment deals with the overall mass and depth of a home and would take the depth from the front door to the back deck. Averaging the two provides the depth of the subject property and the maximum height that is allowed. Any structure beyond that must drop down in height to 20 feet. The intent was to provide massing between adjoining properties in terms of architecture. A majority of the massing must also be oriented toward the street rather than into individual back yards.

Staff recommended that the Planning Commission review the request as-is. No further amendments were proposed to the original public hearing held a few years earlier. Staff

recommended that the Planning Commission recommend the text amendment to the City Council for further review.

Chair Mackin opened the public hearing. There were no public comments. The public hearing was closed.

Commissioner Carter moved to forward a positive recommendation to the City Council on Ordinance Amendment – Building Corridor; Calculation Clarification (13.14.071). The motion was seconded by Commissioner Bradshaw. Vote on motion: Troy Holbrook-Aye, Jan Bradshaw-Aye, Chris Layton-Aye, Jim Carter-Aye, Alyssa Lloyd-Aye, Chair Ann Mackin-Aye. The motion passed unanimously.

2. Ordinance Amendment – Development Near Waterways – Supplementary Regulations (13.76.400).

Mr. Teerlink presented the staff report and stated that as currently written, this section of ordinance deals with development near natural and manmade waterways. There are distances from each type of waterway in that if development is proposed, an applicant is required to present their development proposal to the Planning Commission for an exception. The review must include a recommendation from the City Engineer. The Planning Commission, during a public hearing, reviews the City Engineer's recommendation for the new development proposed within the distance from the waterway. Over the past several years there have been a few dozen of these types of applications come before the Planning Commission. Usually, positive recommendations have been made although there have been a few denials. Staff and the Engineering Department were behind on how to deal with re-creating corridors in low-lying canal areas.

Millcreek City and Salt Lake City have established a standard matrix of what is allowed within a certain distance of waterways so that all residents know what is expected. Holladay now wants to do the same. This way if a property owner wants to exceed the standards, they would pursue an exception with the Planning Commission or default to the variance process. If the standards cannot be met due to a circumstance involving a hardship, an Administrative Hearing Officer can adjudicate the issue.

In response to a question raised, Mr. Teerlink stated that all three major canals have a 20-foot access easement for structures. Within 20 feet they prefer nothing built in order to preserve their access for maintenance. Commissioner Carter commented that the most standard practice is to avoid the use of exceptions, which creates uncertainty. His opinion was that the subjects that come up for discussion would be better discussed in the context of whether they create a hardship and whether the person is entitled to a variance. He felt there was a lack of clear understanding for the Planning Commission to make consistent determinations on exceptions. Mr. Teerlink stated that going forward he will make sure that every reference to relief is included with the variance process.

Chair Mackin opened the public hearing. There were no public comments.

Mr. Teerlink stated that when neighbors get involved in these types of applications, it creates a difficult and cumbersome situation. Chair Mackin agreed and felt that having clear standards will

help alleviate emotional appeals. The three areas were reviewed and discussed. It was clarified that the amendment separates types of development into existing and newly proposed. An addition to a structure would create a different scenario.

The public hearing was continued to the July 7, 2020 meeting when the final version of the Ordinance Amendment would be presented.

3. Ordinance Amendment – Fill Work and Land Excavations – Supplementary Regulations (13.76.400).

Mr. Teerlink explained that the above matter involves a text amendment that has been considered for some time and pertains to the amendment to the residential grading standards for retaining walls within setbacks. The City Council was asked to consider a moratorium on these types of applications while the amendment is considered. The Council deliberated and determined that a moratorium may not be necessary because they believe they can move forward quickly after receiving the recommendation from the Planning Commission.

Chair Mackin reviewed the Technical Review Committee Analysis set forth in the staff report. Mr. Teerlink explained that the proposed amendment establishes the standards discovered through recent findings and applications. If the Commission is comfortable with the standards in the draft text, they will be written based on previous meetings the Planning Commission has had with applicants.

A question was raised by Chair Mackin about the requirement that the maximum height of any retaining wall be limited to six feet above existing? natural grade. Mr. Teerlink explained that the section referred to addresses retaining walls in use of a cut slope. In such a case, the height of the wall from the top of the slope down can be a maximum of six feet.

Commissioner Layton asked about possible verbiage addressing fences being placed on top of retaining walls. Mr. Teerlink referenced Paragraph 9(a) which specifies that a retaining wall cannot be located on or straddling a property line or within a required, recorded easement. He commented that there is nothing that would prevent an applicant from placing a shed on top of the first retaining wall. A shed that meets the required setbacks could potentially go up to 20 feet for an accessory building in the rear yard setback. Mr. Teerlink explained that where any structure has to conform to a setback, they have the right to construct whatever privacy structure they desire. Chair Mackin commented that clearer language regarding retaining walls will be helpful in the future.

Chair Mackin opened the public hearing. There were no public comments. The public hearing was closed.

Jim Carter asked Commissioner Layton if he thought that having retaining walls for the purpose of filling behind them within four feet of a property line was too close. Commissioner Layton did feel it was too close and stated that a neighbor could raise on a 1:1 ratio four feet in and four feet up and plateau their lookout plateau and do it again an additional four feet. His understanding was that that would not be allowed within a side yard setback by more than two feet. His recollection

was that the goal was to prevent people from being able to build up in a side yard so that they are peering down into the neighboring property. As a result, he thought the same protection should be in place for a rear yard neighbor so that someone cannot build up their rear yards near the property line.

One option was to pursue a 2:1 ratio with eight feet before going up four feet, which there was support for among the Commission. Jan Bradshaw suggested alternative language that within any setback the retaining wall with a fence on top cannot exceed six feet. The thought was that the impact on the neighbor will be mitigated.

It was suggested that Section 8(b) be modified to specify that the maximum depth of backfilled grades within eight feet of a property line, rather than four feet, be two feet and finished at a 1:1 slope. Support was also expressed for a 1:2 ratio. Mr. Teerlink explained that with regard to grades, there would be a limit of two feet above the averaged grades of abutting properties. Regardless of how much they would like to amend or alter the grades, an applicant would be limited to the average of the two properties above them by two feet. If an applicant wants a much larger area, they would need to dig down rather than build up.

Fencing issues were discussed. Commissioner Holbrook remarked that what compounded the difficulty of the Tanga wall continuation matter was the fence on top of the retaining wall because there was confusion in the prior interpretation. Commissioner Layton stated that if someone is eligible to have an accessory building, it might be very close to the property line of both the side yard and rear yard and can be fairly tall. If nothing can be greater than six feet above the existing grade, and retaining walls can only be four feet above the existing grade, it will keep someone from putting a very tall fence on top of a four-foot retaining wall and creating a visual obstruction for the neighbor.

Commissioner Carter suggested the possibility of pushing back to a four-foot retaining wall so that there is a gentler slope and adding four feet of fence on top for a maximum of eight feet. Another option was to impose a combined maximum of eight feet of the retaining wall plus the fence. The intent was to avoid huge concrete structures in backyards.

Alyssa Lloyd commented that anything within the setbacks should be at a 2:1 ratio with a maximum of eight feet for the wall and fence. Chris Layton recommended that it be tied back to the existing grade and limit the height above existing grade within a property to four feet.

Mr. Teerlink referenced Paragraph 9(c)(1) and clarified that the proposed change would be to an eight-foot setback. Paragraph 9(c)(3) would be changed to set the landscaped offset at eight feet. The order of items 9(c)(2) and 9(c)(3) should also be switched for clarity. 9(c)(4) should be added to specify that if a guard rail is used in conjunction with a retaining wall, it cannot exceed 42 inches in height and needs to be opaque or a railing feature.

Commissioner Bradshaw moved to forward a positive recommendation to the City Council on the Ordinance Amendment to Section 13.76.700-Land Excavation Special Requirements for Grading and Retaining within Required Setbacks with the following changes:

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1. ***Line 67 – (1) A minimum of an eight-foot setback shall be required for any retaining wall system.***
2. ***Line 68 – (2) Each subsequent retaining wall must be accompanied by an additional, horizontal landscaped offset of eight feet (8’).***
3. ***Line 71 – (3) The maximum height of any retaining wall shall not exceed four feet (4’) measured from the natural grade. Height shall be stepped every ten feet (10’) to accommodate changes in the natural topography.***
4. ***Line 73 – (4) If a guard rail is used in conjunction with the retaining wall, it cannot exceed 42 inches in height.***

The motion was seconded by Commissioner Carter. Vote on motion: Troy Holbrook-Aye, Jan Bradshaw-Aye, Chris Layton-Aye, Jim Carter-Aye, Alyssa Lloyd-Aye, Chair Mackin-Aye. The motion passed unanimously.

ACTION ITEMS

4. Approval of Minutes – 5/5/20.

The minutes of May 5, 2020, were reviewed and modified.

Commissioner Layton moved to approve the minutes of May 5, 2020, as amended. The motion was seconded by Commissioner Bradshaw. The motion passed with the unanimous consent of the Commission.

Mr. Teerlink reported that there are currently several applications pending with the Technical Review Committee (“TRC”).

With regard to the Holladay Hills project, Mr. Teerlink stated that they are currently working on their sewer connection. Until the sewer pipe is set at level, they cannot set their building heights. They are boring underneath Highland Drive to get the alignment to connect.

5. ADJOURN

Commissioner Carter moved to adjourn. The motion was not seconded. The motion passed with the unanimous consent of the Commission.

The Planning Commission Meeting adjourned at approximately 8:00 p.m.

I hereby certify that the foregoing represents a true, accurate, and complete record of the City of Holladay Planning Commission Meeting held Tuesday, June 16, 2020.

Teri Forbes

Teri Forbes
T Forbes Group
Minutes Secretary

Minutes Approved: **07/21/2020**